



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 11568

MAR 29 1996

400 Seventh Street, S.W.
Washington, D.C. 20590

EXPIRATION DATE: March 1, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Equipment and Meter Services, Inc.
Linden, N.J.
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of residual amounts of Class 3 liquids in a non-DOT specification cargo tank, described as 1010 gallon volumetric prover tank, mounted on a truck chassis. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 172.200, 172.604, 173.243(b), 173.242(b)(1) and 173.243(b) in that non-DOT specification cargo tank motor vehicles are authorized and Part 107, Appendix B to Subpart B, Paragraph (2).
5. BASIS: This exemption is based on the application of Equipment and Meter Services, Inc. dated August 11, 1995, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Gasoline	3	UN1203	II
Kerosene	3	UN1223	III
Fuel Oil (No. 2, 4 or 6)	3	NA1993	III

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging authorized is a non-DOT specification 1010 gallon cargo tank (volumetric prover tank) mounted on a trailer. The maximum pressure during transportation must be less than 2 psig. Pressure relief devices are not required. Internal stop-valves on bottom outlets are not required. Remote closure devices and overturn protection are not required.

b. TESTING - The prover tank must be visually inspected and pressure tested as required by 49 CFR 180.407(c) for MC-306 Specification cargo tanks.

c. OPERATIONAL CONTROLS -

(1) The bumper for the trailer must meet the requirements of 49 CFR 178.340-8(b) and 393.86.

(2) The cargo tank must be drained of all liquid prior to transportation. Only vapors of petroleum distillates and residue liquids at a pressure of less than 2 psig are authorized as lading in transportation.

8. SPECIAL PROVISIONS:

a. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

b. The cargo tank covered by this exemption must be plainly marked on both sides, in letters at least two inches high on a contrasting background, "DOT-E 11568." The marking requirements of 49 CFR Part 107, Appendix B to Subpart B, paragraph (2) and 172.203(a) are waived.

c. Shipping papers are not required.

d. No emergency response telephone number is required.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by 49 CFR 107.601 et seq., when applicable.

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No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

MAR 29 1996



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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